Opposition Roadmap — Matter 26 UPS MTD

Matter 26 — Newanforbi v. United Parcel Service, Inc.
E.D. Cal. No. 2:26-cv-02847-DAD-CKD

CLOCKS (confirm on docket)
Opposition due ~ Sep. 9, 2026 (E.D. Cal. L.R. 230(c) — 14 days after Aug. 26 filing)
Amendment as of right ~ Sep. 16, 2026 (Fed. R. Civ. P. 15(a)(1)(B))
Hearing: Oct. 5, 2026, 1:30 PM, Courtroom 4

THIS 10-FILE PACK
01 UPS MTD complete (ECF 7 / 7-1 / 7-2 / 7-3) — 62 pages
02 Exhibit A First Advantage report + key findings ★ start here
03 Complaint + stamped pages + summons
04 First Advantage adverse-action notices (pre / reminders / final)
05 Pre-suit demand packet
06 Notice of Removal (Dkt 1)
07 Initial Scheduling Order (Dkt 2)
08 Service papers (POS-010 + UPS removal COS)
09 PACER docket + history
10 This opposition roadmap

UPS SIX ATTACK LINES
1. §290.46(j)(2)(E) only bars Megan's Law website access; Ex. A allegedly shows commercial pu
ll
2. Tameny does not extend to failure-to-hire
3. ICRAA notices satisfied
4. No privacy interest / consent (Ex. B)
5. Negligence per se is not a standalone claim
6. UCL derivative of §290.46 theory

CORE COUNTER — EXHIBIT A
Overall score: INELIGIBLE (07/19/2024)
National Sex Offender Registry / DOJ website — Record Found / Decisional
SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY
SENTENCE: REGISTERED SEX OFFENDER
Position: Loader/Unloader - Hub, US-LATHROP HUB (CALAH)

STRATEGIC FORK
Oppose under L.R. 230(c), amend as of right under Rule 15(a)(1)(B), or both.
Extrinsic exhibits on a pure 12(b)(6) are attackable (convert to Rule 56 or disregard).
Plead the Exhibit A NSOR / California registry hit UPS just put in the record.